

--SUMMARY--

Decision No. 315/14

25-Nov-2014

S.Clement - M.Trudeau - R.Lebert

- Accident (occurrence)

No Summary Available

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References: Act Citation

- WSIA

Other Case Reference

- [w0115n]

Style of Cause:

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WORKPLACE SAFETY AND INSURANCE APPEALS TRIBUNAL

DECISION NO. 315/14

BEFORE:

S. Clement : Vice-Chair
M. P. Trudeau : Member Representative of Employers
R. J. Lebert : Member Representative of Workers

HEARING:

June 3, 2014 at Toronto
Oral
Post-hearing activity completed on September 2, 2014

DATE OF DECISION:

November 25, 2014

NEUTRAL CITATION:

2014 ONWSIAT 2555

DECISION UNDER APPEAL:

WSIB Appeals Resolution Officer (ARO) decision dated
December 23, 2011

APPEARANCES:

For the worker:

G. Nolis, Paralegal

For the employer:

N. B., Company Personnel

REASONS

(i) Introduction to the appeal proceedings

- [1] The worker appeals the December 23, 2011 decision of S. M. Elliot, ARO, which concluded that the worker did not have initial entitlement for a back, neck strain and right sided hernia injury which the worker claims arose out of and in the course of employment on December 7, 2010. The ARO rendered a decision following an oral hearing.

(ii) Issues

- [2] The issues under appeal are as follows:
1. Initial entitlement for the back, neck strain and right sided hernia injury arising out of and in the course of employment on December 7, 2010.

- [3] The appeal is allowed for the reasons set out below.

(iii) Background

- [4] The following are the basic facts.

- [5] The worker who is now 60 years of age was employed as a mechanic with the employer. He was employed approximately nine months prior to the incident of December 7, 2010.

- [6] The worker claims that on December 7, 2010 he injured his back and neck and developed a right sided hernia as the result of a workplace accident. The worker claims that he came down a ladder, turned and tripped into a coolant flushing machine. The worker reported the accident to his employer but did not immediately feel pain. He said the pain occurred about one to one-and-a-half hours after the incident. The worker said he called his doctor when he got home but the earliest appointment he could get was December 9, 2010. The worker did receive medical attention with an initial diagnosis of acute low back and neck strain. The worker also complained of right groin pain.

- [7] The employer disputed the claim stating the worker did not fall. The employer claimed they had the worker on video but did not provide a copy of the claimed video evidence. The employer alleged the worker was making a false claim and asked that the claim be denied.

- [8] The Board denied initial entitlement in the claim. The worker appealed and the denial of entitlement was upheld by the ARO in the December 23, 2011 decision. The issue of initial entitlement is before the Panel.

(iv) Law and policy

- [9] Since the worker was injured in 2010, the *Workplace Safety and Insurance Act, 1997* (the “WSIA”) is applicable to this appeal. All statutory references in this decision are to the WSIA, as amended, unless otherwise stated.

- [10] Specifically, section 2(1) and 13 of the WSIA governs the worker’s entitlement in this case.

- [11] Pursuant to section 126 of the WSIA, the Board stated that the following policy packages, Revision #8, would apply to the subject matter of this appeal:

- Package #1 – Initial Entitlement

[12] We have considered these policies as necessary in deciding the issues in this appeal, in particular:

- *Operational Policy Manual* (OPM) Document No. 15-02-01, “Definition of Accident”;
- OPM Document No. 11-01-01, “Adjudicative Process.”

(v) Testimony

(a) The worker

[13] In response to questions the worker confirmed he is a licensed mechanic in the Province of Ontario. The worker said he has worked as a mechanic from age 23. He said he is able to do all automotive repairs and had been employed with the employer for nine or 10 months. The worker said he had one other injury while with the employer when on August 9, 2010 he sustained a burn to his right arm from steam from a radiator.

[14] The worker said he had sustained injuries around 2008 in a motor vehicle accident when the car was rear ended. He said he did not miss time from work. He said he had physio therapy for the right rotator cuff. He denied having had any prior back injuries.

[15] The worker acknowledged he did have a left hernia repair which was covered under a WSIB claim. He said 20 years later he had surgery to the right side for an inguinal hernia which was not work related. He said the right hernia surgery was about three years prior to the time he worked for the accident employer. He said he took two months off for the right sided surgery due to the physical demands of his work.

[16] The worker said on the day of the accident he had a medical checkup scheduled in the morning which was not work related and therefore he did not start work until 1 p.m. on the day of the accident. He said he normally starts work at 8 a.m. He said his hours of work were based on piecework and he was sent home if there is no work.

[17] The worker said on the day of his accident he was assigned to do an oil change and install four brand new tires. The worker said he opened the drain and removed the oil pan to let the oil drain while he went to get the tires which were about 40 feet away from where he was working.

[18] The worker said he had to look for the tires. He stated the tires are stacked at about six feet to 24 feet high. He said he needed to use a folding ladder which was 12 to 15 feet high and lean it against the rail where the tires are stored. He said it was an aluminum step ladder with a 30 inch wide base and 15 inch width at the top. He said he had to repair the ladder for the shop because he wanted to make sure it was safer. He said on the day of the accident he was happy with the safety of the ladder.

[19] The worker said the tires were racked about 20 feet wide on the full west side of the wall and were mounted on steel racks. He said the ladder had to be placed between the cars which were being worked on. He said the hoists are on an angle to accommodate a greater number of vehicles so he had to be careful because the tires are very close to where the cars were. He said he had about four feet of clearance.

- [20] The worker said he was able to look for the tires without the ladder on the first level but did need the ladder to check the second and third levels. He said he couldn't find the tires so he went back to continue with the oil change. He said the boss asked where the tires were and he advised he had been unable to find them. He was directed to go back and look for them. He said he went back to where he left the ladder which was by the oil tank. He said at the time a co-worker was doing a radiator flush about three feet away.
- [21] The worker said he went up the ladder about $\frac{3}{4}$ of the way but thought it was useless because he knew he couldn't find the tire. He said he went back down and when he stepped on the floor it was slippery. He said he didn't see the machine and as he stepped down and turned the machine was right there and he tripped and put his hands out to break his fall and he fell into the flushing machine. He said his right foot was on the floor and his left foot was still on the ladder. He said the floor by the oil tank, which holds about 1,000 litres of oil and is hand pumped, had some spills which is why the floor was slippery.
- [22] The worker said the flushing machine has the old product in the bottom with the top holding the new coolant. He said as he put his hands out as a first reaction and fell into the machine it toppled over and fell to the floor breaking the top container on the machine. He confirmed the pictures and weight of the machine set out in the exhibits which were included in the case material were accurate. He said it was difficult to say how full the bottom of the machine was at the time of the accident. He said if it was full it would weigh another 50 to 60 pounds on the bottom. He said his estimate was that the machine weighed about 100 pounds at the time which would include the weight of the machine itself. He said the machine is on wheel casters, similar to a shopping cart. He said this makes it easy to move the machine around. The worker said if he had just hit the machine with his elbow as alleged by the employer the machine would have just rolled away. He said when he came down the ladder he fell into the machine and knocked it down. He said he didn't fall completely but he couldn't hold onto the machine and prevent it from falling. He said the bottom part of the unit didn't spill but the top part, which is glass, broke and spilled the coolant.
- [23] The worker said no one came to help him but instead kept working on their cars. He said after the unit fell over he picked the unit up. He said he had to jam his boot in the castors and had to lift it back onto its four wheels. He said he grabbed it from the side because the broken glass was sharp.
- [24] The worker described the shop as being about 2000 square feet, approximately 50 feet long by 40 feet wide with four hoists on the east side and three hoists on the west side. He said there is a door at the front and the rear which are each 25 to 30 feet high.
- [25] The worker confirmed the shop had 24 hour video cameras located in all four corners, plus one at the front counter. He said the video cameras rotate and cover the whole of the shop floor. He said he had occasion to view the video feed when upstairs to get paid. He said he could observe the monitor which showed what was going on. He said when he was upstairs having lunch or getting changed and the door was open he could see through the office and noted the cameras are always on and recording.
- [26] The worker said following the incident and after picking up the unit he returned to his stall to continue with his work. He said his boss came in yelling and screaming and asking why the job wasn't done. He said his boss was the owner of the shop. He stated the boss went and found the tires and helped with the installation.

[27] The worker said he and his boss got into an argument over the incident and his boss asked him if he was going to pay for the damage to the flushing machine. The worker said after the tires had been installed his boss sent him home. He said the boss has sent others home on occasion. He said this can happen when old vehicles are being worked on and repairs were made for free. He said he paid for repairs five or six times before and he didn't want to lose his job. He said his boss gave him a bill for the unit.

[28] When asked if he told the boss he had been injured when he was told to go home, the worker said he didn't at the time because he was under a lot of stress in relation to his boss yelling at him.

[29] The worker said by the time he got home he had pain in his neck, lower back and right groin. He said he phoned Dr. Smith, his family physician about 5 p.m. and made an appointment. The worker said the following day was the doctor's normal day off so he had to wait until the Thursday to see the doctor. He said he did tell the doctor's office that he had sustained an injury at work. He said while waiting to see the doctor he took Tylenol #3 for the pain. He said he had the medication on hand.

[30] The worker said he called his boss the next morning at 8:30 a.m. and told him that he was sore from the injury and that he had made an appointment with his doctor and wouldn't be into work until after he had seen the doctor.

[31] The worker said on Thursday his boss called him at 8:20 a.m. and asked him to go in and work on a car. He said his boss told him he saw the video and said he would see a lawyer. He said the boss called him again at 9 a.m. and suggested the worker look for work elsewhere and accused the worker of filing a false claim. The worker said he responded stating his boss should keep the video because he would need it.

[32] The worker said on Friday he called WSIB three times to get a Form 6. He said he knew his payday was that week. He said he tried to get a Form 6 from the employer and in the interim he sent a fax to WSIB. He said he was unable to drive so someone took him to get his pay. He said when he went to his workplace his boss presented him with a bill for the broken flushing machine and refused to give him his pay. He said he then stopped to see a lawyer and the lawyer told him that the employer owed him more than what the bill was.

[33] The worker said when he got home around 3:30 or 4:00 p.m. he received a phone call telling him to go in and pick up his pay on Saturday before 5:00 p.m. The worker said he did go in to get his pay and locked his tool box. He said he had asked to leave his tools there and arranged to take them out of there the following week.

[34] When asked, the worker confirmed that he was never shown the video of the incident. He said when he went in to pick up his pay cheque he said his boss said he would show the video but then changed his mind.

[35] The worker was asked about his condition following the incident, including whether or not he had observed a lump in his groin. The worker said he did see a lump but by the time he saw his doctor on Thursday the lump was gone. He said the doctor was unable to find the hernia. He said the doctor had him come in two or three times before sending him for an ultrasound. The worker said he continued to experience groin pain but the ultrasound did not initially show the hernia. He said when the hernia was visible again he went to see the doctor and the hernia was diagnosed. He said he was referred to a specialist and eventually had surgery for the hernia.

- [36] The worker said he had ongoing neck and back pain. He said he did get better after being off work for about two months. The worker said he was told he needed a minimum of six weeks off following the hernia surgery. He said he was told not to lift anything for a month and a half. He said he has fully recovered from his injuries.
- [37] The worker said he did receive sick benefits through Employment Insurance. He said he received 15 weeks of benefits and returned to work after he recovered. He said he worked for three-and-a-half to four years with another employer and had worked as a mechanic. He said he has taken time off work due to stress and is currently receiving EI benefits.
- [38] When asked about statements submitted by co-workers, the worker said he disagrees with H.A.'s statement to the investigator because the ladder was never wobbly. He also said it is impossible to topple the unit with your elbow because if the machine was bumped with an elbow it would move away on the castors. He said the machine toppled when he fell into it.
- [39] The worker said he also disagrees with the statement of R.S. who is a manager. He said R.S. was 15 feet behind him. He said he told him he was concerned the machine had not been put away. He reiterated his statement that he did not fall to the ground; rather he fell into the unit when he lost his footing. He said he righted his balance after falling half way into the machine. He said the incident did not last very long and he acknowledged he did yell at a co-worker for failing to put the machine away. He reiterated that he did not take the tires down but this was done by his boss.
- [40] In response to questions by the employer's representative the worker said when comparing the employer's shop to the other shops he has worked in they were not quite the same in that the other shops where he worked were well kept and there were no safety issues. He said the tire layouts were not the same but the bays were the same as other shops. The worker said most shops have a warehouse for tires and one or two racks of tires are in the shop. He said he wouldn't go and get tires out of the warehouse when employed elsewhere. The worker said in the employer's shop there was no room which is why the tires were stacked up. He said the cars were all jammed together and the floor by the oil tank was greasy.
- [41] In response to the employer's questions the worker reiterated his testimony regarding his efforts to find the tires and the fact that there are four cameras in the shop and one in the front office. He said at the time of the incident the flushing machine was right behind the ladder and would have been moved by H.A. in order to lower the hoist. The worker said the hood on the car was still open. He said it was because the flushing machine was right behind the ladder that he didn't see it when he came down the ladder. He said when the machine hit the floor it made a loud noise. The worker said he didn't immediately clean up the spill because he was told to finish working on the car and it was after this that he went back and cleaned up the spill. He reiterated his boss helped finish installing and balancing the tires. He said after that he used a big garden hose to clean up the entire spill and he washed the floor and used a squeegee to clean it thoroughly. He said it took an hour and a half to finish the job and clean up the mess.
- [42] The worker said he changed upstairs. He said he didn't need any help and reiterated that he didn't feel pain right away but only after he drove home did he notice the soreness. He said even if he broke his leg he wouldn't have noticed the pain with all the yelling and stress he experienced after the incident. He said the pain was not serious enough to prompt him to go to emergency but he took the first medical appointment available which was on the Thursday.

[43] When asked by the employer's representative the worker said he didn't disagree with all of the co-worker's statements to the Board investigators. He acknowledged he did yell at H.A.

[44] The worker confirmed the video cameras were working but he reiterated he was never shown the video of the incident. He said the employer said he would show the worker the video. However, when the worker said he wanted to see the video, the employer stated he didn't want the worker to go up to see it because he might fall down the stairs.

(b) Employer witness – R.S.

[45] In response to questions R. S. stated he is a manager and service adviser and also does work on cars. He said as a shop manager he manages the work flow and orders parts. When asked he said he is not a licensed mechanic but he did attend Centennial College. He said he does do work in the "stall" when the front is covered and he helps when the work is backed up.

[46] When he was asked about the work process in the shop R.S. said he asks the customer about the type of tires they wish to purchase, then he prepares a work order. The mechanic then grabs the keys, gets the tires and puts them on, balancing and aligning them. He said one person does all the work. He stated the work pattern on December 7, 2010 was no different than usual. The witness said he was not certain but thought the worker had been hired in the summer of 2010.

[47] R.S. said that at the time of the incident he was working on a vehicle and the worker was setting up the ladder about 15 feet from where R.S. was working. He said the worker took one step up and then he backed into the cooling machine and his arm hit the machine and toppled it over. In a more detailed description he said as the worker tried to steady the ladder he took two steps back and bumped the machine with his elbow, the machine toppled over and broke the glass. He said when the machine fell the worker was standing beside the machine. He said he turned to look and he thought the boss and one other person picked up the machine.

[48] When asked why the machine was in that location R.S. said there was a coolant flush being done. He said the car was on the ground but positioned on the hoist. He said the flushing machine was in front of the car's hood about a foot or two away. He said he saw the worker and he believes one or two other people helped the worker upright the machine. He said he recalls that the worker and one or two other people helped him pick up the machine.

[49] R.S. said the worker continued to work on the vehicle and he believed he complained he was hurt and he went up to change. He said two people cleaned up the coolant and the cleanup took place about five to ten minutes after the spill. He said the worker did not raise any concerns with him. He said he was not aware of any discussion the worker may have had with the boss.

[50] In response to questions about the tires R.S. acknowledged there could have been a problem in trying to find an exact match if there are 400 to 500 tires. He said in November and December there would have been a higher volume of tires on hand. He said when the tires come in the junior mechanic would put them away. He said there is no specialized place to put them. He said the tires are put away in a set of four with four in the front and four in the back. He said sometimes the front tires would have to be moved to see the tires in the back. He said the labeling is sometimes updated and sometimes it is not. He said the font on the label is about one-and-a-half to two inches in size. He said at times it was necessary to climb on the rack to reach the tires at the back.

[51] He said to his knowledge no safety issues were raised. He said there was a need to get the spilled coolant off the floor right away and it was cleaned up within five minutes of the spill. R.S. was unable to recall if he had directed someone to do the cleanup. He said he thought there were six to seven mechanics working at the time of the incident. He was unable to be certain as to how much coolant had spilled. He described the size of the spill as being the width of the hearing table, about three to four feet and the length and a half of the table which is estimated at eight to 10 feet. The worker said he didn't think there was coolant in the bottom of the machine because a catch pan had been used when the coolant was drained. He estimated the machine with coolant in it would be about 70 pounds. He said the machine had castors similar to a grocery store cart. He said if the bottom did not have coolant in it would have been top heavy. He said the top portion holds three quarts of coolant or about two-and-a-half litres.

[52] When asked, R.S. said he did not see a video. He said the owner told him he had the worker on video.

(vi) Submissions

[53] Mr. Nolis and Mr. N.B. provided the Panel with written submissions including reply submissions.

[54] In his July 24, 2014 submission Mr. N.B. cited evidence contained in the case materials and contrasted that with the worker's testimony of June 3, 2014. He concluded stating the worker did not trip, slip or fall in any way that would have caused an injury which the worker claimed occurred during the incident of December 7, 2010. He submitted the worker's testimony was consistent with the employer's submission and contradicted the worker's earlier claim that he slipped and fell. He pointed out the worker signed the Employer's Report of Injury on January 3, 2011 which stated that the worker slipped and fell and sustained injuries and that is also what the worker stated on his report of accident. He also asked the Panel to consider the worker's statement to the Board's Claims Investigator and his statement to his doctor when seen on December 9, 2010.

[55] In his reply submissions in response to Mr. Nolis July 24, 2014 submissions, Mr. N.B. reiterated his earlier comment that the worker's testimony differed from the original claim that he had slipped and fell. He asked that the worker's claim be dismissed and that we find the worker did not sustain an injury as a result of the December 7, 2010 incident.

[56] In his submissions of July 24, 2014 Mr. Nolis asked the Panel to have regard to the record specifically the detailed statement completed by the worker and attached to the Form 6 dated December 12, 2010. He pointed out in that statement the worker stated he tripped into the coolant machine as he was coming down backwards from a ladder and the unit toppled down. In that statement the worker stated he fell into the unit momentarily but was successful in regaining his balance.

[57] Mr. Nolis submitted the worker did not immediately recognize his injury which was reasonable in the circumstances, that is the need to complete his work and the fact the work was upset by the ensuing argument with his boss over the damaged flushing machine. Mr. Nolis pointed out the worker did report the injury and did seek medical attention at the earliest opportunity. He asked the Panel to consider Dr. Smith's confirmation that the worker called his office for an appointment on December 7, 2010.

[58] Mr. Nolis submitted the question of credibility was important to reaching a decision in the appeal. He stated the worker's testimony at the hearing was extremely consistent with the reports in the record. He stated the information provided by the employer's witness was contradicted by the evidence of record and appeared to be illogical.

[59] Mr. Nolis asked the Panel to have regard to the fact the employer failed to provide key evidence which the employer claimed existed, specifically the video of the incident. He submitted failure to provide this evidence negated the worker's opportunity to establish his own claim.

[60] In his August 6, 2014 reply submission to Mr. N.B.'s July 24, 2014 submission, Mr. Nolis specifically addressed the question of whether or not the worker could have injured himself if he did not slip, trip or fall. He submitted Mr. N.B. misinterpreted the worker's testimony and asked the Panel to consider the information provided by the worker, specifically that he fell into the machine, and not to the floor. He said as the machine fell to the floor the worker regained his balance. Mr. Nolis stated he strongly disagreed with the conclusions in Mr. N.B.'s July 24, 2014 submission.

(vii) Analysis

[61] The question before the Panel is whether or not the worker had an injury by way of accident. The worker claims that he sustained an injury to his back and neck and had a hernia as a result of an accident which occurred in the workplace on December 7, 2010.

[62] Section 2(1) of the WSIA defines "accident" stating:

2 (1) In this Act,

"accident" includes,

- (a) a wilful and intentional act, not being the act of the worker,
- (b) a chance event occasioned by a physical or natural cause, and
- (c) disablement arising out of and in the course of employment; ("accident")

[63] Section 13(1) and (2) of the WSIA states:

13 (1) A worker who sustains a personal injury by accident arising out of and in the course of his or her employment is entitled to benefits under the insurance plan.

Presumptions

(2) If the accident arises out of the worker's employment, it is presumed to have occurred in the course of the employment unless the contrary is shown. If it occurs in the course of the worker's employment, it is presumed to have arisen out of the employment unless the contrary is shown.

[64] In arriving at the December 23, 2011 decision the ARO had regard to the provisions of Board OPM Document No. 15-02-01, "Definition of Accident," which verifies the definition found in section 2(1) of the WSIA.

[65] The case materials included Board OPM Document No. 11-01-01, "Adjudicative Process," which provided guidelines for use in determining whether or not a worker has initial entitlement in a claim. The policy states:

Policy

A claim created by the WSIB for a workplace accident/disease is adjudicated based on entitlement principles and the facts of the case. The claim may be handled by a specific area of the WSIB given the nature of the injury/disease.

Guidelines

Adjudication is the process used to determine entitlement to benefits and services under the Workplace Safety and Insurance Act or the Workers' Compensation Act (the Act). An adjudicator is the person who makes decisions regarding entitlement.

Once an accident report has been received by the WSIB, a claim is set up and assigned to the appropriate operating area. A short description of the claim and adjudication types follows.

Primary adjudication

This is the first step in the adjudication process. If all necessary information is received, the facts of the claim are very straightforward, and the employer is not disputing the allowance of the claim, the claim can be allowed and paid immediately by a primary adjudicator. If a decision cannot be made immediately, the claim file is forwarded to a consolidated adjudicator to gather the relevant information required to render a decision.

...

Five point check system

All adjudicators use the same criteria for ruling on initial entitlement to WSIB benefits. This system is known as the "five point check system."

An allowable claim must have the following five points

- an employer (see 12-01-01, Who is an Employer?)
- a worker (see 12-02-01, Workers and Independent Operators)
- personal work-related injury
- proof of accident, and
- compatibility of diagnosis to accident or disablement history.

Proof of accident

Some points adjudicators consider when examining proof of accident are

- Does an accident or disablement situation exist?
- Are there any witnesses?
- Are there discrepancies in the date of accident and the date the worker stopped working?
- Was there any delay in the onset of symptoms or in seeking health care attention?

Diagnosis

If it is not clear that the (injury or disablement) diagnosis provided is the result of the accident or disablement history described, an opinion is sought from the WSIB's medical consultant.

[66]

The Panel has considered the question of initial entitlement in conjunction with the provisions of both the WSIA and the applicable Board OPM. There is a worker and an employer. The key question is whether or not the worker sustained a personal work-related injury. The

worker claims he sustained an injury to his neck and low back as well as a hernia as a result of falling into a flushing machine. It is the employer's position that the worker's neck, back and hernia are not the result of an injury. The employer relies on what it deems are inconsistencies in the report of accident and injury.

[67] The Panel gave significant weight to the contemporaneous evidence contained in the case materials. We also carefully considered the testimony of both the worker and employer witness in conjunction with the contemporaneous evidence.

[68] On the initial Form 6, Worker's Report of Injury/Disease the worker stated he sustained an injury to his neck, lower back and right groin on December 7, 2010 when he slipped and fell into a heavy coolant machine; the machine toppled over and was broken. He stated he reported the injury right away to the shop owner. In a subsequent Form 6 the worker reiterated his claim that he sustained an injury to his neck, lower back and right groin on December 7, 2010 when he slipped or tripped in the heavy coolant flushing machine. The worker attached a written statement to the Form 6 which he completed on December 12, 2010. In the written statement the worker provided a detailed description of what occurred. He provided a chronology of events which are not in dispute that is that he was looking for tires and was using a ladder to look on the rack for the tires he needed. He said:

When I got almost to the end of the rack I went up three or four steps up the ladder and realize that I was not going to find them. I came down and turned around and tripped into a cooling flushing machine that was left in the way. It should have been stored away. The unit full of coolant toppled over and the top glass container broke when the unit hit the floor spilling coolant all over. There was no offer to help; everyone was working on cars at this point in time.

...

"A" came over to tell me that I caused the damage and to pay for it. It was around 2:30 PM. I told him that I had slipped or tripped into the unit that it was an accident.

[69] The worker went on to describe the sequence of events following the accident and noted the owner claimed to have a video of what occurred and when he picked up his pay cheque he was told he could view the video but the owner then withdrew the offer to view it and he in fact never did see the video.

[70] In the Employer's Report of Injury/Disease, Form 7 dated December 30, 2010 and completed by R.S, the employer's witness, it confirms the worker was a permanent full time employee and the accident occurred on the premises. R.S. identified two witnesses to the injury, one of which was himself. R.S. provided additional information stating the worker was using a ladder to try to find some tires and he knocked over the coolant machine. He stated R.S. and H.A. were standing by as well as other mechanics who witnessed what happened. R.S. went on to state:

[The worker] did not fall and is making a false statement. He went home the same day. We have [the worker] on video. [The worker was] walking perfectly. He got into a fight with the shop manager (verbal) the manager sent him home. On Dec. 8, 2010 he called in sick. On Dec. 9, 2010 the manager [called the worker] at home, [the worker] answered the phone and that he fallen during the time he was trying to find those tires. This is a false statement as there is a lot of witnesses there in the shop and right in front of him.

[71] A claim investigation was carried out by the Board in January 2011. In the report of the half hour meeting with the worker and his representative on January 10, 2011 there is a description of the accident provided by the worker which outlines the series of events leading up to the incident and a description of the incident itself which states:

...he was on the ladder for approximately 20 to 30 seconds and then descended the ladder. Unbeknownst to the worker someone moved the flushing machine closer to the base of the ladder approximately two to two and a half feet away.

As he descended backwards he could not notice the flushing machine. He turned to the right and walked right into the flushing machine which is approximately four feet high. The machine fell to the floor and the worker fell on top of the machine. The Plexiglas container broke on impact. The worker was tangled up with the machine then was able to stand up. He states he may have had some coolant spilled on his pant cuffs or boots only.

The worker then up righted the flushing machine which weighed 100 pounds and continued on as per his comments in the Form 6 and addendum.

No one came to investigate what happened.

On the way home approximately one hour after the incident he began noticing neck, back and right groin pain.

[72] The Board's investigator also met co-workers as well as R.S. the employer's witness.

[73] In the investigation notes of the interview with H.A. it states H.A. had an unobstructed view of the worker, the ladder and the flushing machine. H.A. stated the worker had difficulty setting up the ladder and the ladder started to wobble. H.A. stated:

The worker in setting up the ladder against the rack had some difficulty and the ladder started to wobble. The worker tried to steady it. In jostling with the ladder the worker's right elbow hit the flushing machine knocking it over.

The worker did not fall to the ground with the machine but remained standing the entire time. The coolant was all over the floor. He started to pick up the broken pieces and stated there was too much clutter around therefore this caused him to knock the flushing machine over...

The worker did not look disabled in any way, shape or form for the entire time the worker was at work that day.

[74] The claims investigator also interviewed other co-workers R.P. and H.B. In notes regarding the interview with R.P. it states he did not see what happened but heard the noise and looked over seeing the worker standing beside the flushing machine which was on the ground. He offered his opinion that from when he heard the noise to when he saw the worker he could not see how the worker could have fallen and gotten up. He went on to comment that visibly during this time the worker did not look disabled in any way.

[75] In the investigation notes of an interview with H.B. it states H.B. was working on a bay 10 meters from the worker. He heard a noise and when he looked up he saw the worker standing with the flushing machine on the floor with coolant everywhere. He said he looked up as soon as he heard the bang therefore the worker could not have fallen and then gotten up in that space of time and if he had fallen the worker would have been covered in coolant which he was not. He went on to state that for the entire time he saw the worker before and after he knocked the machine over the worker did not look disabled in any way, shape or form.

[76] In notes of the meeting with R.S., the employer's witness it stated R.S. was standing approximately six to 10 feet away from the worker. R.S. stated:

The worker had a ladder against the tire rack. The worker was setting up the ladder and the ladder started slipping to the right. The worker tried to steady it and hit the flushing machine with his elbow or arm and it fell to the floor spilling coolant everywhere. The worker did not fall here at all; standing the entire time. R.S. stated he had an unobstructed view of the incident.

...

The worker did not look disabled in any way for the entire time the worker was at work that day.

[77] The Panel notes the investigation notes confirmed the worker completed his work following the incident and left work after an argument with the owner of the business.

[78] In the investigator's notes regarding his meeting with the owner it states the owner did not see the incident but stated there was a video but he was unable to view it because he did not have the password to access the system. The note went on to state that the owner thought he could view the tape but never did and that the owner assumed that what had happened was on the tape and clearly showed that nothing happened as claimed by the worker. The investigation note stated the owner said the worker did not appear disabled in any way, shape or form and he only became aware that the worker was claiming an accident when the worker came in a few days later for his paycheque. The owner said he would be contesting the allowance of an accident on December 7, 2010 as claimed by the worker.

[79] There is no dispute that the flushing machine was knocked over, what is in dispute is the manner in which this occurred. The Panel has two distinct descriptions of what caused the machine to fall over and break. In considering the disparities before us the Panel considered the evidence contained in the case materials, specifically the specifications of the machine in question. The machine is identified as a Vacufill Coolant Exchanger described as having a large 3 gallon (11 litre), new coolant fill tank with a large 12 gallon (45 litre) waste-coolant reservoir. The machine dimensions are 50" by 19" by 20" and weighs 49 pounds.

[80] In addition to the documentation on the machine's specifications in the testimony of both the worker and the employer's witness it was stated the machine was on wheels described as being like the wheels on a shopping cart. The witnesses, both the worker and R.S. as well as the co-workers who spoke with the claims investigator noted that coolant was spilled all over the floor. When considering the size of the machine coupled with the weight of the coolant, the machine would have been very heavy at the time of the December 7, 2010 incident. Given the uncontradicted evidence regarding the coolant spill the Panel considered how this could have occurred. When considering the size and weight of the machine, as well as the fact it was on castor wheels similar to a shopping cart it is not reasonable to accept the claim by some witnesses, that the machine would have been knocked to the floor as the result of simply being bumped by the worker's arm or elbow. It is more probable than not that had the machine simply been bumped by the worker's elbow it would have simply rolled away. On the other hand, if the worker toppled into the machine as he contends it is more probable than not that the machine would have fallen to the ground as described.

- [81] The Panel found the worker to be credible. He has never claimed that he slipped, tripped or fell to the floor. He has consistently claimed that he walked, tripped or fell into the machine knocking it over and quickly regained his balance. The witnesses verify knowledge of the machine being on the floor.
- [82] The Panel also considered the medical evidence. In his letter dated December 5, 2011 Dr. Smith cites his notes which set out a chronology of his involvement with the worker. He specifically noted that the worker had tried to arrange an appointment on December 7 but no appointments were available and the earliest he was able to see the worker was on December 9, 2010 when the worker was seen with complaints of pain in the right groin and low back pain bilaterally. He provided a chronology of his findings and confirmed the worker was not improving and was referred to a General Surgeon for the bulge in the groin. The worker went on to have surgery for the hernia. The Panel did consider the fact Dr. Smith's notes indicate the worker had a fall at work, slipping on a greasy floor. The Panel notes this is not consistent with the information provided by Dr. Smith on the Form 8, Health Professional's Report which was completed on December 12, 2010. On the Form 8 Dr. Smith set out his understanding as to how the injury occurred stating:
- Just finished coming down a ladder, floor slippery, slip, fell against a coolant flushing machine which should have been stored elsewhere.
- [83] The statement of Dr. Smith on the Form 8 is consistent with the worker's report of the accident. We note that there are inconsistencies between Dr. Smith's letter of December 5, 2011 and the information on the Form 8. We find the contemporaneous information on the Form 8 is more reliable given its proximity in time to the incident.
- [84] The Panel did consider the testimony of R.S. the employer's witness and found it to be less reliable. In his testimony R.S. stated the worker took one step up the ladder and stepped down and backed into the cooling machine and his arm hit the machine and toppled it over. In a more detailed description he said as the worker tried to steady the ladder he took two steps back and bumped the machine with his elbow, the machine toppled over and broke the glass. He said when the machine fell the worker was standing beside the machine. He said he turned to look and he thought the boss and one other person picked up the machine.
- [85] In his statement to the Claims Investigator R.S. said the worker had a ladder against the tire rack. He stated the worker was setting up the ladder when the ladder started slipping to the right. He said the worker tried to steady it and hit the flushing machine with his elbow or arm and the machine fell to the floor spilling coolant everywhere. R.S. told the investigator that the worker did not fall at all and was standing the entire time. R.S. stated he had an unobstructed view of the incident.
- [86] The Panel finds it significant that R.S. in his testimony before the Panel said he turned to look whereas he told the claims investigator that he had an unobstructed view of the incident. In his testimony R. S. confirmed he had not viewed the video which allegedly showed what occurred on December 7, 2010. On the Form 7 which was completed by R.S. it states they have the worker on video. If the incident did not occur, as claimed by the employer, the Panel would expect the employer to provide the video evidence which they claimed they had. The Panel notes the worker confirmed the shop has video surveillance. If there was a video of the incident the employer could have provided a copy of that evidence to support the employer's contention that the worker did not have an injury as claimed.

[87]

When considering all of the evidence before us we are satisfied that the worker sustained an injury to his neck and back and developed a hernia as a result of falling into the flushing machine and knocking it over on December 7, 2010. The worker's appeal is allowed.

DISPOSITION

[88] The appeal is allowed:

1. The worker has initial entitlement for the injuries to the back, neck and hernia arising out of the December 7, 2010 workplace injury.

[89] The nature and duration of benefits flowing from this decision will be returned to the WSIB for further adjudication, subject to the usual rights of appeal.

DATED: November 25, 2014

SIGNED: S. Clement, M. P. Trudeau, R. J. Lebert